

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda	Team: Squad #08	CCRB Case #: 201504328	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/24/2015 9:00 PM	Location of Incident: Baisley Boulevard and 172nd Street	18 Mo. SOL 11/24/2016	Precinct: 113		
Date/Time CV Reported Thu, 05/28/2015 11:14 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 05/28/2015 11:14 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Rochener Gilot	01416	936665	PBQ/S
2. POM Winfred Carmona	27638	954605	PBQ/S

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Nicole Echevarria	02195	936542	PBQ/S
2. POM Joseph Paige	19528	955288	PBQ/S

Officer(s)	Allegation	Investigator Recommendation
A . SGT Rochener Gilot	Abuse: Sgt. Rochener Gilot authorized PO Joseph Paige to refuse to provide his shield number to § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Winfred Carmona	Discourtesy: PO Winfred Carmona acted discourteously toward § 87(2)(b)	B . Unsubstantiated

Case Summary

On May 24, 2015, at approximately 9:00 p.m., § 87(2)(b) was driving his vehicle southbound on 170th Street, in Queens, with his girlfriend, § 87(2)(b). All four of § 87(2)(b)'s side windows, as well as the rear windshield, were tinted. § 87(2)(b)'s side windows were completely rolled down. As § 87(2)(b) was preparing to turn left onto Baisley Boulevard, he noticed a marked RMP traveling eastbound on Baisley Boulevard. § 87(2)(b) turned left onto Baisley Boulevard and pulled over in a bus lane at Baisley Boulevard and 172nd Street so that § 87(2)(b) could go to a bodega. The RMP that passed by earlier executed a U-turn and pulled up behind § 87(2)(b)'s vehicle. PO Winfred Carmona and Sgt. Rochener Gilot from Patrol Borough Queens South exited the RMP and approached § 87(2)(b)'s vehicle. PO Carmona asked § 87(2)(b) to roll up his side windows, but § 87(2)(b) refused. PO Carmona obtained § 87(2)(b)'s license and vehicle paperwork and returned to his RMP. PO Joseph Paige from Patrol Borough Queens South was passing by in another RMP and stopped to see if the officers needed assistance. § 87(2)(b) and § 87(2)(b) asked PO Paige for his shield number, but Sgt. Gilot allegedly said, "You don't need his information." **(Allegation A)** PO Paige returned to his RMP without providing his shield number. PO Carmona wrote summonses to § 87(2)(b) for § 87(2)(b). When PO Carmona returned to § 87(2)(b) to give him the summonses, PO Carmona allegedly threw the summonses through the driver's side window and onto § 87(2)(b)'s lap **(Allegation B)**. PO Carmona and Sgt. Gilot returned to their RMP and left the scene.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) refused mediation. On July 31, 2015, a FOIL request was sent to the New York City Comptroller's Office and the status of a Notice of Claim for § 87(2)(b) and § 87(2)(b) is pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer Histories

- This is § 87(2)(b)'s and § 87(2)(b)'s first CCRB complaint (See Board Review 3).
- Sgt. Gilot has been a member of the service for 10 years and there are no substantiated CCRB allegations against him. § 87(2)(g)
- PO Carmona has been a member of the service for two years and this is the first CCRB complaint filed against him.

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Gilot and PO Carmona acknowledged interacting with § 87(2)(b) and § 87(2)(b)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A- Abuse of Authority: Sgt. Rochener Gilot authorized PO Joseph Paige to refuse to provide his shield number to § 87(2)(b) and § 87(2)(b)

Allegation B- Discourtesy: PO Winfred Carmona acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that he was driving to Wal-Mart with § 87(2)(b) and he rolled all of his side windows completely down before driving because they were tinted. § 87(2)(b) acknowledged receiving tickets for excessive window tints prior to the incident and he rolled his windows down to avoid getting stopped by the police. § 87(2)(b) stated that a marked RMP drove past his vehicle before he turned from 170th Street onto Baisley Boulevard. § 87(2)(b) pulled over in a bus lane because there was a bodega across the street that § 87(2)(b) wanted to go to so that she could buy medicine for an upset stomach. When § 87(2)(b) left to go to the store, the RMP that passed by earlier performed a U-turn and pulled up behind § 87(2)(b)'s vehicle. PO Carmona and Sgt. Gilot exited the RMP and approached § 87(2)(b)'s vehicle. PO Carmona asked § 87(2)(b) for his license and registration and told him that he was pulled over due to his tinted windows. § 87(2)(b) provided his paperwork to PO Carmona and § 87(2)(b) came out of the store and sat back inside § 87(2)(b)'s vehicle. PO Carmona asked § 87(2)(b) to roll up his side windows, but § 87(2)(b) refused, stating that his windows were down since he left his house and that he knew that he would be stopped by the police if they were rolled up. PO Carmona told § 87(2)(b) that he could also issue § 87(2)(b) a summons for § 87(2)(b). § 87(2)(b) argued with PO Carmona, telling PO Carmona that he forced § 87(2)(b) to pull over into a bus lane. PO Carmona told § 87(2)(b) that he was going to give § 87(2)(b) tickets because of his attitude. PO Carmona returned to his RMP to write summonses for § 87(2)(b). Sgt. Gilot remained standing outside next to § 87(2)(b)'s vehicle. While PO Carmona was writing the summonses, an RMP being driven by PO Paige was passing by and PO Paige stopped and exited his RMP. Sgt. Nicole Echevarria was riding with PO Paige, but § 87(2)(b) did not recall whether she exited the RMP during the incident. PO Paige approached Sgt. Gilot and spoke with him on the right side of § 87(2)(b)'s vehicle to see whether he needed assistance. § 87(2)(b) asked Sgt. Gilot and PO Paige for their shield numbers. § 87(2)(b) wanted PO Paige's shield number so that he could identify every officer at the scene for the purpose of filing a complaint. Sgt. Gilot provided his name and shield number to § 87(2)(b) but when § 87(2)(b) asked for PO Paige's shield number, he replied, "You don't need his information." Sgt. Gilot said that § 87(2)(b) did not need PO Paige's shield number because he was not involved with the car stop. PO Paige never provided his shield number and returned to his RMP and drove away. PO Carmona returned to § 87(2)(b)'s vehicle with summonses for § 87(2)(b). PO Carmona said, "Here's your ticket," and threw the tickets through the driver's side window onto § 87(2)(b)'s lap. PO Carmona and Sgt. Gilot then left the scene (See Board Review 5).

§ 87(2)(g) § 87(2)(b) corroborated that § 87(2)(b) was driving with all four of his side windows down because they were tinted and he received a ticket several weeks prior for excessive window tints. When § 87(2)(b) left the store and returned to § 87(2)(b)'s vehicle, PO Carmona asked § 87(2)(b) to pull up his side windows, but § 87(2)(b) refused to do so. § 87(2)(b) argued with PO Carmona that he should not be receiving summonses because his windows were rolled down and the officers pulled him over into the bus stop. Another RMP that was passing by pulled over when PO Carmona returned to his RMP to write the summonses. PO Paige exited the RMP and spoke with Sgt. Gilot on the right side of § 87(2)(b)'s vehicle. § 87(2)(b) asked Sgt. Gilot for his shield number and Sgt. Gilot provided his name and shield number. § 87(2)(b) also asked PO Paige for his shield number, but Sgt. Gilot told § 87(2)(b) that she did not need PO Paige's information because PO Paige was not involved with the situation. § 87(2)(b) continued asking for PO Paige's shield number, but he returned to his RMP without providing the requested information. PO Carmona returned to § 87(2)(b)'s vehicle to give him the summonses. § 87(2)(b) stated that § 87(2)(b) raised his hand to take the summonses, but PO Carmona tossed the summonses onto § 87(2)(b)'s lap. § 87(2)(b) stated that PO Carmona and Sgt. Gilot returned to their RMP and she approached their vehicle and asked PO Carmona for his name and shield number. PO Carmona stated that that information was provided on the summonses that he issued to § 87(2)(b). § 87(2)(b) stated that she was satisfied with PO Carmona's response and she returned to § 87(2)(b)'s vehicle (See Board Review 6).

PO Carmona stated that he initially observed both of § 87(2)(b)'s right side windows pulled up and that the right side windows as well as the rear windshield were tinted. PO Carmona drove past § 87(2)(b)'s vehicle before executing a U-turn and observed § 87(2)(b) pull into a bus stop. All four of § 87(2)(b)'s side windows were now completely down. PO Carmona and Sgt. Gilot exited their RMP and approached § 87(2)(b)'s vehicle; § 87(2)(b) was the only occupant in the vehicle during this time. PO Carmona requested § 87(2)(b)'s license, registration, and proof of insurance. § 87(2)(b) immediately started yelling at PO Carmona, telling him that he had no good reason to stop § 87(2)(b). PO Carmona asked § 87(2)(b) to roll his windows up, but § 87(2)(b) replied that his windows were already down prior to the stop. PO Carmona replied that he observed § 87(2)(b) with his windows up prior to the stop. § 87(2)(b) never rolled up his side windows. PO Carmona asked § 87(2)(b) why he was parked at a bus stop, and § 87(2)(b) replied that he was waiting for § 87(2)(b) who was at the store. § 87(2)(b) provided his paperwork and PO Carmona returned to his RMP to write summonses to § 87(2)(b). § 87(2)(b) then left the store and returned inside § 87(2)(b)'s vehicle. Another RMP that was driving by stopped at the scene and PO Paige and Sgt. Echevarria asked PO Carmona if he needed assistance. PO Carmona gave a thumbs up signal, indicating that assistance was not needed. PO Paige and Sgt. Echevarria then drove away and neither officer ever exited their RMP. PO Carmona wrote one summons to § 87(2)(b) for § 87(2)(b) and another summons for § 87(2)(b). PO Carmona denied throwing the summonses at § 87(2)(b)'s lap. When PO Carmona and Sgt. Gilot returned to their RMP, § 87(2)(b) approached their vehicle and asked PO Carmona for his name and shield number. PO Carmona replied that his information was written on the summonses and § 87(2)(b) was satisfied with this response. PO Carmona did not know whether § 87(2)(b) or § 87(2)(b) ever asked PO Paige for his name or shield number, since he was inside his RMP writing summonses when PO Paige arrived at the scene. PO Paige was also not aware as to whether Sgt. Gilot prevented § 87(2)(b).

§ 87(2)(b) or § 87(2)(b) from obtaining PO Paige's information since he was inside his RMP (See Board Review 7).

§ 87(2)(g) . Sgt. Gilot stated that he initially observed all four of § 87(2)(b)'s side windows rolled up prior to the car stop, and the windows were tinted. When Sgt. Gilot and PO Carmona approached § 87(2)(b)'s vehicle, § 87(2)(b) was upset and asking the officers whether they had anything better to do. § 87(2)(b) showed the officers a summons that he had previously received for excessive window tints. The officers asked § 87(2)(b) to pull his windows up so that they could be tested with a tint meter, but § 87(2)(b) refused to pull them up. Sgt. Gilot observed that § 87(2)(b)'s rear and front windshield were both tinted. However, these windows could not be tested because a window would need to be inserted between the tint meter in order to be tested. § 87(2)(b) was parked at a bus stop; § 87(2)(b) stated that he was parked there because he was waiting for § 87(2)(b) to leave the store. When § 87(2)(b) returned to § 87(2)(b)'s vehicle, she asked the officers whether they had anything better to do. § 87(2)(b) asked Sgt. Gilot for his name and shield number and Sgt. Gilot verbally provided both to her. PO Carmona obtained § 87(2)(b)'s paperwork and returned to his RMP to write summonses for § 87(2)(b). PO Paige and Sgt. Echevarria were driving by in another RMP and they stopped briefly at the scene to ask Sgt. Gilot whether he needed assistance. PO Paige exited his RMP and spoke with Sgt. Gilot, who stated that he did not need assistance and instructed PO Paige to resume patrol. PO Paige returned to his RMP and drove away. PO Paige and Sgt. Echevarria were only at the scene for approximately 15-30 seconds. Sgt. Gilot stated that neither § 87(2)(b) nor § 87(2)(b) asked PO Paige for his name or shield number. Sgt. Gilot denied preventing either occupant from obtaining PO Paige's name or shield number. Neither PO Paige nor Sgt. Echevarria had any interaction with either § 87(2)(b) or § 87(2)(b). Sgt. Gilot stated that when PO Carmona returned to § 87(2)(b)'s vehicle, PO Carmona gave the summonses to § 87(2)(b) in his hand and did not throw the summonses at § 87(2)(b)'s lap. When PO Carmona and Sgt. Gilot returned to their RMP to leave the scene, § 87(2)(b) exited the vehicle and approached their RMP. § 87(2)(b) asked the officers to wait, but they were already driving away. § 87(2)(b) did not ask PO Carmona for his name or shield number. Sgt. Gilot and PO Carmona drove away without speaking with § 87(2)(b) (See Board Review 8).

PO Paige confirmed that he stopped at the scene to see if Sgt. Gilot needed assistance, since car stops are potentially dangerous encounters. PO Paige stated that when he was passing by, § 87(2)(b)'s vehicle had already been pulled over and Sgt. Gilot was standing alone next to § 87(2)(b)'s vehicle. PO Carmona was inside his RMP. PO Paige stated that § 87(2)(b)'s side windows were partially visible and that the windows were tinted. PO Paige, who was the operator for Sgt. Echevarria, stopped his RMP and exited his vehicle to speak with Sgt. Gilot. Sgt. Echevarria remained inside the RMP. PO Paige asked Sgt. Gilot if everything was ok and Sgt. Gilot replied that he was ok and instructed PO Paige to resume patrol. PO Paige spoke with Sgt. Gilot for less than 30 seconds before returning to his vehicle and leaving the scene. PO Paige stated that neither § 87(2)(b) nor § 87(2)(b) asked him for his name or shield number. PO Paige stated that he had no interaction with either occupant while he was at the scene. Sgt. Gilot did not prevent either occupant from obtaining PO Paige's name or shield number. PO Paige denied refusing to provide his name or shield number to either occupant of the vehicle. PO Paige stated that PO Carmona never exited his RMP while PO Paige was at the scene (See Board Review 9).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] For this
reason, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that
Allegation B be closed as **Unsubstantiated**.

Pod: 8

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date